

		Here, the Cross-Complaint fails to allege all elements of the malicious prosecution claim. Gulham is ordered to serve notice.
5.	2025-1484192 Mucatel vs. Arbor Palms of Anaheim	Plaintiff Patricia Wallick’s unopposed motion to be appointed personal representative for Decedent Victor Mucatel is granted. Code Civ. Proc., § 377.31 states: “On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, but the decedent’s successor-in-interest.” Here, Plaintiff submitted a declaration, confirming that she is the deceased plaintiff’s successor-interest, which complies with Code Civ. Proc., § 377.32. She states that the only other heirs at law and successors in interest aside from herself are her siblings Daniel Mucatel, Marc Mucatel and Joseph Mucatel (also Plaintiffs). (Wallick Decl., ¶¶ 2-3, Ex. A.) Plaintiff included consents signed by her siblings for her to be appointed representative of Decedent’s claims. Plaintiff shall give notice.
6.	2023-1339526 Huerta vs. Cedar Fair, LP	The motion of plaintiff Melanee Huerta, by and through her guardian ad litem, Wendy Mariona, substituting herself in as plaintiff in place of her guardian ad litem now that she has reached the age of majority is granted. Code Civ. Proc. §372(a)(1); <u>Facts</u> When this action was filed Plaintiff was a minor and a guardian ad litem was appointed. [Complaint (ROA #2), ¶ 3; second amended complaint “SAC”), ¶ 3; Application and Order filed 8/7/23 (ROA #8; Kruse Decl. (ROA # 136), ¶ 3.] Plaintiff was born on 10/11/2006. [Application and Order, ¶ 4.a; Kruse Decl., ¶ 4.] She is therefore now over 18. [<i>Id.</i>] <u>Discussion</u> Code of Civil Procedure section 372 provides that a minor must appear in an action through a guardian ad litem. Code Civ. Proc. §372(a)(1) (“When a minor, a person who lacks legal capacity to make decisions . . .). Once the minor reaches her majority, she no longer lacks legal capacity. As a result, the statutory authorization for appointment of